

Discovery in this case has been stayed as to Plaintiff's individual claims and as to the representative claims. This matter will be continued to afford Plaintiff's counsel the ability to seek discovery solely as to MCEVER's individual claims of due and unpaid wages in order to provide a substantive analysis as to the class action waiver.

The court continues the motion to compel arbitration to afford the parties the opportunity to provide supplemental briefing as to these limited issues and to permit the parties to engage in discovery as to MCEVER's individual claims as to due and unpaid wages only. This discovery will not constitute a waiver of an agreement to arbitrate.

Supplemental briefs are due November 5, 2027 by noon and shall not exceed 10 pages. Hearing on the continued motion is continued to **November 19, 2026 at 9:00 a.m.**

Cuong The Chau v Long Hoang
Case No. CU26-00473

Motion for Attorneys' Fees

TENTATIVE RULING:

Respondent's motion for attorneys' fees is DENIED. The civil harassment action is related to an ongoing family law dispute involving Petitioner and Respondent's significant other. The civil harassment matter was dismissed by Petitioner after the parties were encouraged by the court to resolve the conflict and determined to do so in the best interests of the children and resolution of the ongoing custodial dispute. The dismissal was not solely on the basis that a continuance was denied. Petitioner was not advised that Respondent would seek attorneys fees following a voluntary dismissal nor did the court so advise Petitioner. As the dismissal was in the nature of settlement efforts, rather than a concession of the merits, the equities do not support an award of attorneys fees.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002